

Amendment No. 1 to HB1823

White
Signature of Sponsor

AMEND Senate Bill No. 1968

House Bill No. 1823*

by deleting "tier two or" in subdivision (o)(1) in the amendatory language of Section 2.

AND FURTHER AMEND by deleting subsection (p) in Section 2.

AND FURTHER AMEND by deleting Section 5 and substituting instead the following:

SECTION 5. Tennessee Code Annotated, Section 49-6-3007, is amended by adding the following as a new subsection:

(i)

(1) The attendance records for a student who transfers or withdraws from an LEA or public school, including a public charter school, after the school year has commenced must be maintained by the LEA or public school from which the student transferred or withdrew for the remainder of the school year.

(2) An LEA or public school that enrolls a student after the school year has commenced shall determine during the enrollment process whether the student was previously enrolled in another LEA or public school at any time during that same school year. If the LEA or public school determines that the student was previously enrolled in another LEA or public school in the same school year for which the student seeks to enroll in the LEA or public school, then the enrolling LEA or public school shall request the student's attendance records from each LEA or public school at which the student was previously enrolled during that same school year. A former LEA or public school that receives a request from another LEA or public school for a student's attendance records pursuant to this subdivision (i)(2) shall provide the attendance records for the

respective school year to the requesting LEA or public school within five (5) business days of the date on which the request was received.

(3) An LEA or public school that enrolls, after the school year has commenced, a student who was previously enrolled in another LEA or public school at any time during that same school year shall include the number of any unexcused absences accumulated by the student at the student's former LEA or public school in the same school year in the number of unexcused absences for the student at the enrolling LEA or public school and shall implement the appropriate tier of the enrolling LEA's progressive truancy plan, if applicable.